

## RESOLUTION OF TERMINATION OF THE PROCEDURE

### FOR RECOGNITION OF RESPONSIBILITY AND

### VOLUNTARY PAYMENT

Of the procedure initiated by the Spanish Agency for Data Protection and based on the following

#### BACKGROUND

FIRST: On January 31, 2025, the Presidency of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against SINDICAT CATAC-CTSC (hereinafter, CTSC), through the Agreement transcribed below:

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File No: EXP202500469

#### AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection, and based on the following

#### FACTS

FIRST: As a result of a complaint filed with the Spanish Agency for Data Protection against SINDICAT CATAC-CTSC with NIF G61762241 (hereinafter, CTSC), signs of a possible breach of the regulations within the competencies of the Spanish Agency for Data Protection were observed, leading to the initiation of actions under file number EXP202313012.

In accordance with the provisions of Article 65 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD hereinafter), the complaint was forwarded to the responsible party or the Data Protection Officer designated, if applicable, requesting that they send to this Agency the information and documentation indicated.

The forwarding, which was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by means of electronic notification, was not collected by the responsible party within the availability period, as evidenced by the acknowledgment of receipt in the file, understanding that the procedure was carried out in accordance with the provisions of Articles 43.2 and 41.5 of the LPACAP on October 10, 2023.

Although the notification was validly carried out by electronic means, for informational purposes, a copy was sent by postal mail, which was returned to the sender by Correos on November 2, 2023, due to Surplus (not collected at the office after a notice was left in the mailbox), according to the acknowledgment of receipt in the file, despite having been sent to the tax address of CTSC provided by the State Agency for Tax Administration.

In accordance with Article 42.1 of the LPACAP, the notification sent by postal mail was also made available to the interested party by electronic means through the single enabled electronic address. On November 8, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by CTSC was admitted for processing.

SECOND: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigation actions to clarify the facts in question, by virtue of the investigative powers granted to control authorities in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section two, of the aforementioned LOPDGDD.

In the framework of the investigation actions, a request for information was sent twice, regarding the complaint indicated in the first section, requesting that, within ten working days, they present to this Agency the information and documentation specified.

THIRD: The aforementioned request for information was notified on both occasions in accordance with the rules established in the LPACAP. The first time, the request was collected by CTSC on December 5, 2023. The second time, the request was returned to the sender by Correos on February 21, 2024, due to Surplus (not collected at the office after a notice was left in the mailbox), according to the

acknowledgment of receipt in the file, despite having been sent to the tax address of CTSC, in the same manner as the first.

In accordance with Article 42.1 of the LPACAP, both notifications were also made available to the interested party by electronic means through the single enabled electronic address.

FOURTH: Regarding the requested information, CTSC has not sent any response to this Spanish Agency for Data Protection.

## LEGAL GROUNDS

I

### Competence

In accordance with the powers granted to each control authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD,

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The Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

II

### Procedure

Furthermore, Article 63.2 of the LOPDGDD establishes that: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

In accordance with Article 64 of the LOPDGDD, and taking into account the characteristics of the alleged infringement committed, a sanctioning procedure is initiated.

The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. Upon the expiration of this period, it will become void, and consequently, the proceedings will be archived; in accordance with the provisions of Article 64 of the LOPDGDD.

III

### Obligation not fulfilled

In accordance with the evidence available at this moment of the initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that CTSC has not provided the information requested by the Spanish Agency for Data Protection.

With the aforementioned conduct of CTSC, the investigative power conferred to control authorities by Article 58.1 of the GDPR, in this case, the AEPD, has been obstructed.

Therefore, the facts described in the “Facts” section are deemed to constitute an infringement, attributable to CTSC, for violation of Article 58.1 of the GDPR, which states that each control authority shall have, among its investigative powers:

“a) to order the controller and the processor and, where applicable, the representative of the controller or the processor, to provide any information required for the performance of its functions.”

IV

### Classification and qualification of the infringement

This infringement is classified under Article 83.5.e) of the GDPR, which considers as such: “not providing access in violation of Article 58, paragraph 1.”

The same article establishes that this infringement may be sanctioned with a fine of up to twenty million euros (€20,000,000) or, in the case of a company, an amount equivalent to four percent (4%) of the total annual global turnover of the previous financial year, opting for the higher amount.

For the purposes of the statute of limitations for infringements, the infringement attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

“ñ) Not providing access to the personal data, information, premises, equipment, and processing means required by the data protection authority for the exercise of its investigative powers.”

## Proposal for sanction

In order to determine the administrative fine to be imposed, the provisions of Articles 83.1 and 83.2 of the GDPR must be observed, which state:

“1. Each control authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question as well as the number of data subjects affected and the level of damage suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented pursuant to Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the control authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;

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h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or the processor notified the infringement and, if so, to what extent;

i) when the measures indicated in Article 58(2) have previously been ordered against the controller or the processor in relation to the same matter, the compliance with such measures;

j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and

k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”

For its part, Article 76 “Sanctions and corrective measures” of the LOPDGDD states:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having a data protection officer when not mandatory.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”

Furthermore, to ensure a consistent application of the GDPR, the Guidelines 04/2022 issued by the European Data Protection Board on the calculation of fines under the GDPR must be taken into consideration.

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In this case, considering the severity of the possible infringement, particularly taking into account the consequences that its commission causes to the affected parties, the imposition of a fine would be appropriate, in addition to the adoption of measures, if applicable.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR.

In light of the circumstances presented, without prejudice to what results from the instruction of the procedure, it is considered appropriate to impose a sanction on CTSC for the violation of Article 58.1 of the GDPR classified in Article 83.5 e) of the GDPR. The sanction to be imposed is an administrative fine in the amount of 600.00 euros.

Therefore, in accordance with the above, by the Presidency of the Spanish Agency for Data Protection,

IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against SINDICAT CATACTSC, with NIF G61762241, for the infringement of Article 58.1 of the GDPR, classified in Article 83.5 e) of the aforementioned GDPR.

SECOND: TO ORDER SINDICAT CATACTSC to provide, in accordance with the investigative power provided in Article 58.1.a) of the GDPR, the information requested in the requests made within the framework of the proceedings numbered EXP202313012 and referred to in the description of the facts of this initiation agreement, within a period of ten working days.

THIRD: TO APPOINT A.A.A. as the instructor and B.B.B. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

FOURTH: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the requests for information issued by the General Subdirector of Data Inspection within the framework of the proceedings with file number EXP202313012 and the proof of notification thereof.

FIFTH: THAT for the purposes provided in Article 64.2 b) of the LPACAP, the sanction that may correspond would be, for the alleged infringement of Article 58.1 of the GDPR, classified in Article 83.5 of that regulation, an administrative fine of 600.00 euros, without prejudice to what results from the instruction.

SIXTH: TO NOTIFY this agreement to SINDICAT CATACTSC, with NIF G61762241, granting a hearing period of ten working days for them to make allegations and present any evidence they deem appropriate. In their written allegations, they must provide their NIF and the file number indicated in the heading of this document.

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If no allegations are made regarding this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of the LPACAP.

In accordance with the provisions of Article 85 of the LPACAP, you may acknowledge your responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 480.00 euros, resolving the procedure with

the imposition of this sanction.

Similarly, you may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will result in a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at 480.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one applicable for the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted for formulating allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at 360.00 euros. In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the express withdrawal or renunciation of any action or appeal in the administrative route against the sanction.

For these purposes, in the event of opting for either of them, you must send to the General Subdirectorate of Data Inspection an express communication of the withdrawal or renunciation of any action or appeal in the administrative route against the sanction indicating which of the two reductions you are opting for or if it is for both.

In the event that you choose to proceed with the voluntary payment of any of the amounts indicated above (480.00 euros or 360.00 euros), you must make it effective by depositing it into account no. IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which you are opting.

You must also send the proof of deposit to the General Subdirectorate of Inspection along with the express communication of the withdrawal or renunciation of any action or appeal in the administrative route against the sanction to continue with the procedure in accordance with the amount deposited. In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be carried out exclusively electronically, through the Unique Enabled Electronic Address ([dehu.redsara.es](mailto:dehu.redsara.es)) and the Electronic Headquarters ([sedeagpd.gob.es](mailto:sedeagpd.gob.es)), and that, if you do not access them, your rejection will be recorded in the file, considering the procedure completed and continuing the procedure. You are informed that you can identify an email address to this Agency to receive the notice of availability of notifications and that the lack of practice of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 of the LOPDGDD, due to the vacancy of the Presidency and Deputy Presidency position.

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SECOND: On February 14, 2025, CTSC proceeded to pay the sanction in the amount of 360.00 euros making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement and its legal qualification.

#### LEGAL GROUNDS

I

##### Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish

Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading

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"Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the latter has been justified as inappropriate, voluntary payment by the alleged responsible party, at any time prior to the resolution, will imply the termination of the procedure, except with regard to the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which are cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided in this section may be increased by regulation."

III

Voluntary payment and acknowledgment of responsibility

In accordance with the provisions of the aforementioned Article 85 of the LPACAP, the notification of the initiation agreement informed about the possibility of acknowledging responsibility and making voluntary payment of the proposed sanction, which would imply two cumulative reductions of 20% each. With the application of these two reductions, the sanction would be established at 360.00 euros, and its payment would imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

After the notification of the aforementioned initiation agreement, CTSC has proceeded to acknowledge responsibility and make voluntary payment of the sanction, availing itself of the two reductions provided. In accordance with section 3 of Article 85 LPACAP, the effectiveness of the aforementioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

It should be noted that, according to the provisions of the LPACAP, as well as the jurisprudence of the Supreme Court in this matter, the exercise of voluntary payment by the alleged responsible party does not exempt the administration from the obligation to resolve and notify all procedures, regardless of their initiation form. Likewise, Article 88 of the aforementioned regulation establishes that the resolution that concludes the procedure will decide all issues raised by the interested parties and any others arising from it.

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Therefore, in accordance with the applicable legislation and assessed the criteria for the graduation of

sanctions, the Presidency of the Spanish Agency for Data Protection RESOLVES:  
FIRST: TO DECLARE the commission of the infringements and TO CONFIRM the sanctions determined in the dispositive part of the initiation agreement transcribed in this resolution.  
The sum of the aforementioned amounts yields a total amount of 600.00 euros.

After SINDICAT CATAC-CTSC has proceeded with the prompt payment and acknowledgment of responsibility, a reduction of 40% of the aforementioned total is applied, which results in a final amount of 360.00 euros.

The effectiveness of the aforementioned reductions is, in any case, conditioned upon the withdrawal or renunciation of any action or administrative appeal.

SECOND: TO DECLARE the termination of procedure EXP202500469, in accordance with the provisions of Article 85 of the LPACAP.

THIRD: TO ORDER SINDICAT CATAC-CTSC that, in accordance with the investigative power provided in Article 58.1.a) of the GDPR, to provide, within ten working days from the date this resolution becomes firm and enforceable, the information required in the requests made in the framework of the proceedings numbered EXP202313012 and to which reference has been made in the background of this resolution.

FOURTH: TO NOTIFY this resolution to SINDICAT CATAC-CTSC.

FIFTH: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction for voluntary payment and acknowledgment of responsibility to the withdrawal or renunciation of any action or administrative appeal, this resolution will be firm in the administrative route and fully enforceable from its notification.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

However, in accordance with the provisions of Article 90.3.a) of the LPACAP, the firm resolution in the administrative route may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case,

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In this case, the interested party must formally communicate this fact through a written document addressed to the Spanish Agency for Data Protection, submitting it via the Agency's Electronic Registry [<https://sedeagpd.gob.es/sede-electronica-web/>], or through one of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it would consider the precautionary suspension to be concluded.

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Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

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